

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 23-01

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SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

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**NOTICE OF SUPPLEMENTAL AUTHORITY**

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Attached is the recently issued decision of the United States Court of Appeals for the District of Columbia Circuit before Circuit Judge Childs and Senior Circuit Judges Edwards and Ginsburg in *Evergreen Shipping Agency (America) Corp. and Evergreen Line Joint Service Agreement v. Federal Maritime Commission and United States* (No. 25-1104) (Apr. 28, 2026) on Petition for Review of an Order on Remand of the Federal Maritime Commission denying Evergreen's second petition for review and upholding the FMC's determination that detention charges assessed during a port closure were unjust and unreasonable under the Shipping Act.

Dated: May 4, 2026

Respectfully Submitted,

**HOLLAND & KNIGHT LLP**



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**CERTIFICATE OF SERVICE**

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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